

Data Controller (98.4%), Data Subject (80.7%), Non-Personal Data (66.1%), Personal Data (92.7%), Processing (76.7%), Required Purpose (97.9%), Third Party (74.2%):

LEGAL NOTICE FOR THE MOBILE APPLICATION The Application is produced by the Company Lumiplan Montagne, SAS (a French Simplified Joint-Stock Company) with a capital of a40,210 whose registered office is located at 1 impasse Augustin Fresnel 44800 SAINT HERBLAIN, registered in the French Register of Trade and Companies in Nantes under number B 432 911 469.

Contract (61.1%), Data Subject (86.4%), Processing (95.4%), Required Purpose (72.5%):

GENERAL TERMS AND CONDITIONS OF USE FOR THE MOBILE APPLICATION The purpose of these General Terms and Conditions of Use (subsequently referred to as "GCU"A) is to establish the rules for using the mobile application (subsequently referred to as the "Application") produced by the Company Lumiplan Montagne.

Processing (69.6%), Right (95.9%):

The Company Lumiplan Montagne reserves the right to modify these CGU at any moment by publishing a new version available for consultation.

Data Subject (78.2%), Processing (79.8%):

The downloading and use of the application implies the unconditional acceptance of these CGU by the user.

Organisational Measure (66.8%):

Lumiplan Montagne reserves the right to change the list and content of the Application functionalities at any time without prior notice.

Consent (95.7%), Personal Data (63.1%), Required Purpose (91.2%), Retention (67.0%), Third Party (77.7%):

ACCESS TO THE FONCTIONALITIES OF THE APPLICATION To access the Application functionalities, the user must: Have a mobile device with iOS (version compatible displayed on Apple store) or Android (version compatible displayed on Google Play store); Have an Internet access; Download the Application from the Apple Store or Google Play Store download platform; Optionnal : create a personal account (only for the use of selected services).

Art. 17 Right to erasure (right to be forgotten) (77.6%), Processing (94.4%), Right (89.0%), Third Party (95.0%):

USE OF THE APPLICATION The user undertakes: To use the Application for private and not commercial purposes; Not to sell, lease or market all or part of the Application in any way; To use the Application for its intended purpose; Not to infringe the intellectual property rights to the Application and its constituent elements; Not to use data that is unlawful or that infringes third party

rights, Lumiplan Montagne reserving the option to delete such data without prior notice with no right of the user to claim payment of compensation of any kind; Not to commit any act compromising the security and confidentiality of data processed by the Application.

Data Subject (95.0%):

The tracking module developed in the "Smartphone" application enabling anyone certifying that they are over 15 (hereinafter the "User") to measure their skiing (or snowboarding) performances, to compare them with those of other Users.

Non-Personal Data (89.5%), Personal Data (87.6%), Third Party (92.4%):

ARTICLE 5.1 SERVICES PROPOSED BY TRACKING MODULE SKI + ARTICLE 5.1.1 Description of the services The SKI + application enables Users : to measure their skiing (or snowboarding) performances (the number of downhill runs, the difference in level, the distance, the times done...) via their GPS data, to perform the challenges proposed by Lumiplan Montagne and its commercial partners, and to compare their performances with those of the other Users, to consult the information on numerous ski resorts (hereinafter the "Services").

Required Purpose (79.7%):

The performances the User achieves enable him to earn points and to improve his position in the Users' overall ranking.

Required Purpose (87.0%):

They also enable him to take part in challenges and to win the related electronic badges.

Personal Data (98.0%), Technical Measure (86.3%):

GENERAL TERMS AND CONDITIONS OF USE FOR THE TRACKING MODULE SKI+ INTRODUCTORY NOTE Apple and Google Play are not sponsor and are not involved in the challenges proposed by this application in any way.

Personal Data (99.3%):

ARTICLE 5.1.3 Use of the Services In order to use the SKI + Services the User must either open a SKI + account, and to do so choose a login name and password, which can be modified online on your SKI + Personal Space.

Consent (90.8%), Personal Data (78.7%):

Users over 18 duly acknowledge this and agree to SKI + having access to their Facebook profile photo and to it being seen by the other Users.

Consent (68.2%):

For Users under 18, their Facebook profile photo will be replaced by an avatar which they will be invited to choose.

Personal Data (75.4%):

The User is requested to personalize his profile by downloading a profile photo if he is over 18, or by choosing an avatar if he is under 18 ; - log in through his Facebook account.

Processing (63.3%):

In this case, the User undertakes not to use as a profile photo a picture protected by someone else's intellectual property rights and for which he has not obtained beforehand the right to use and share.

Personal Data (65.2%), Processing (95.7%), Third Party (90.4%):

The Facebook or SKI + account login name and password chosen by the User are strictly personal and confidential and must not be communicated or shared by the User with third parties.

Required Purpose (87.6%):

The User is responsible for the use of his identifiers by third parties or for actions or declarations made through the intermediary of his personal User account, whether they be fraudulent or not and guarantees the Company Lumiplan Montagne against any claim in this respect.

Organisational Measure (61.2%):

The User duly acknowledges that the Company Lumiplan Montagne has no obligation and does not dispose of the technical means to ensure the identity of the people joining and/or using its Services.

Personal Data (98.2%), Processing (84.8%):

Just the login name and, if applicable, the User's profile photo can be visited by other Users, with the exception of the other personal data which shall remain confidential.

Legal Basis (71.8%), Technical Measure (65.3%):

The Director of Publication of the Application is the The Application is hosted by OVH, with registered offices at 2 rue Kellermann 59100 Roubaix (tel: +33 (0)9 72 10 10 07).

Technical Measure (85.1%):

It is specified that the equipment (mobile phone, software, means of telecommunication, ...) enabling access to the Services are to be paid for exclusively by the User, as are the communication charges related to the downloading of the application and its use.

Processing (98.9%):

Lumiplan Montagne's commercial partners to whom the Users' data are transmitted under the terms and conditions laid down in 5 hereinafter, will be able, at their discretion, to attribute prizes, presents or rewards to some Users.

Required Purpose (75.4%), Third Party (74.9%):

Lumiplan Montagne shall never be assimilated to a lottery and/or competition organizer, and therefore can never be held liable for this, notwithstanding the fact that it suggests to the Users that

they can visit the commercial partnersa sites in order to register for the games-competitions-lotteries organized by these partners.

Organisational Measure (66.1%):

For this, the User must always be in control of his trajectory and his speed, and adapt them to the place and circumstances he finds himself in.

Organisational Measure (70.9%):

The User undertakes, to this end, to inform himself of the required level before taking part in a challenge, and to ensure that the state of the skiing area has no effect on the indicated level of difficulty; to take part in the challenges in all good faith, and not to use any ruses to distort the reality of his skiing (or snowboarding) performances.

Data Subject (74.7%):

ARTICLE 5.3 LIMITS OF LUMIPLAN MONTAGNE'S LIABILITY The aim of the SKI + application is to measure, in a playful manner, the skiers' performances.

Third Party (88.3%):

The different information given by the SKI + application is communicated by the partner ski resorts.

Non-Personal Data (73.3%):

Prior to each use of the SKI + application, and in order to ensure that skiing conditions are not dangerous, the User undertakes to check at the ski resort both the weather conditions as well as the state of the skiing area.

Non-Personal Data (76.8%), Processing (84.2%):

PURPOSE OF THE APPLICATION The Application enables the user to access information and services relating to resort and ski area .

Legal Basis (65.7%):

ARTICLE 5.4 INTELLECTUAL PROPERTY SKI + application is a creative work protected by current French and international legislation concerning copyright and intellectual, literary and artistic property and the other similar rights.

Personal Data (74.6%):

All the elements making up SKI + such as namely, but not exclusively, trademarks, models, logos, pictures, texts, sound and other documents, are protected by intellectual property rights and are the sole and exclusive property of the company Lumiplan Montagne.

Legal Basis (91.9%), Processing (99.5%):

If applicable, the User certifies that he uses the SKI + application and does the challenges with the agreement of his legal guardians, and undertakes not to do so without their supervision; that he has

the required physical condition to practise skiing, snowboarding, and in general any other winter sports, and that he has seen a Doctor beforehand in order to be sure of this; that he has full, good quality equipment necessary for skiing and/or snowboarding, and for any other winter sports; that he has been informed that it is recommended to practise winter sports with moderation, to stop from time to time, to drink regularly, to have a well-balanced, appropriate diet, to protect his skin and eyes,...

Processing (67.0%):

Thus any circulation, copy, duplication, modification, transfer, representation or reproduction, either in full or partial, of the SKI + application or of any one of the elements making it up, in any way or for any purpose whatsoever, is expressly forbidden, as is their alteration.

Retention (99.1%):

The rights of use conceded to the Users by the company Lumiplan Montagne are reserved for private and personal use in the framework and for the length of time covered by the registration for the said Services.

Processing (62.3%):

They cannot be reproduced, used or represented without the express authorization of the company Lumiplan Montagne and/or its partners, failing which such use shall be subject to legal proceedings.

Personal Data (87.2%), Processing (96.9%):

ARTICLE 5.5 PROTECTION OF PERSONAL DATA The personal data of a User received on registration and his use of SKI +, namely his login name, his email address, his location, his movement on the ski slopes, his profile photo...

Automated Decision Making (83.7%), Processing (85.0%):

are the object of automatic processing by Lumiplan Montagne and declared to the CNIL.

Personal Data (99.6%), Required Purpose (99.3%):

The company Lumiplan Montagne uses the personal information received from its Users to enable the provision of the Services it offers.

Recipient (69.8%), Required Purpose (94.1%):

Lumiplan Montagne will communicate it to the commercial partners of the SKI + application so that they will be able namely to attribute the prizes and rewards which may be promised, and so that they can improve their own services, which the User expressly accepts.

Authority (96.2%), Legal Basis (72.7%):

With the exception of what is indicated above and subject to any legal or statutory obligation, or on the request of an administrative body or judicial authority, the User is informed that his personal data

shall not be, without his approval, the object of any external communication.

Personal Data (98.8%):

By addressing an email to the following address skiplus@lumiplan.com, and subject to having indicated in it his personal login names, each User can have access to or ask for access to the information concerning him in order to modify it or delete it or forbid some particular kind of use by the company Lumiplan Montagne.

Processing (90.5%):

A User's data shall be kept by Lumiplan Montagne for a maximum length of time of one year as from the User's closing of his SKI + account.

Organisational Measure (97.3%), Required Purpose (96.9%):

78-17 "Data Processing and Liberties" dated 6 January 1978, and ensures optimal security measures against the loss, the bad use and alteration of the information consigned to it by Users.

Processing (98.0%):

All the data received via the SKI + application are saved on a daily basis and stored on a backup medium.

Processing (99.0%):

The User is informed that the SKI + application collects in real time his geolocation data (GPS trackers).

Retention (64.4%):

He is therefore invited to close the SKI + application and/or deactivate the geolocation tool on his Smartphone as soon as he no longer wishes to be located.

Processing (81.0%):

It's aim is not to provide its Users with information about the skiing area, or the weather conditions...

Personal Data (61.8%):

The user can give details the stay and also provide information regarding his preferences.

Required Purpose (79.4%):

This enables the user to obtain information about activities available in the ski area that is appropriate for the members of the group.

Processing (80.6%):

The user is specifically prohibited from undertaking any copy, extraction, reproduction, adaptation, modification, translation, transcription, arrangement, compilation, decompilation, assembly, disassembly, transcoding, reverse engineering, export, use of source code or merging of all or part of the Application or its constituent elements without express permission from Lumiplan Montagne

beforehand.

Legal Basis (92.2%):

This licence is granted for the protection period for intellectual property rights relating to the Application and its constituent elements provided for under French legislation.

Processing (96.5%), Required Purpose (97.1%):

PERSONAL DATA Data collected on the "Create Account" page of the Application undergoes computer processing for the purposes of creating and managing personal user accounts and to enable Lumiplan Montagne to produce statistics on the use of the Application.

Automated Decision Making (68.2%):

The User expressly agrees not to modify, copy, reproduce, download, circulate, transmit, use commercially and/or distribute in any manner whatsoever the Services, trademarks, SKI + application and web site pages, or the computer codes of the elements making up the SKI + Services and application.

Required Purpose (88.5%):

Data collected on the "Enquiries" page of the Application undergoes computer processing to carry out operations relating to the management of current and potential customers (conducting satisfaction surveys and producing statistics etc.).

Consent (88.7%):

They may withdraw consent by changing the settings on the "Notification centre settings" page of the Application.

Required Purpose (89.5%):

To help the user geolocate itself on the ski area or the resort.

Legal Basis (98.4%):

In compliance with the Data Protection Act of 6 January 1978, modified in 2004, the user has the right to access, change and delete and personal data held on them, which they may exercise by emailing Lumiplan Montagne at smartphones@lumiplan.com.

Third Party (60.8%):

FINANCIAL CONDITIONS Downloading the Application and access to and use of its functionalities are free, apart from any account charges made by phone service providers and Internet connection charges.

Processing (94.7%):

In this regard, the user hereby declares their awareness and acceptance of the features and limitations of the Internet, particularly the functional features and technical performance levels of the

Internet, problems relating to Internet connection and access, problems relating to network availability and congestion, problems relating to network failure and saturation, problems relating to transit times, access to information posted on line, response times for displaying, viewing, accessing and otherwise transferring data, the risk of interruption, absence of protection for certain data against possible misuse and piracy and the risk of contamination by viruses on the network etc.

Legal Basis (94.7%):

APPLICABLE LAW These General Terms and Conditions are governed by French law.